

25NWLC48349 25NWLC48349

County: los-angeles

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Department: Z

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25NWLC48349: WELLS FARGO BANK, N.A. vs MICHAEL O CARAWAY, AN INDIVIDUAL

The Court finds Plaintiff has met the initial burden of showing that there is no defense to the causes of action by proving each element of the causes of action entitling Plaintiff to judgment.

On August 25, 2025, Plaintiff WELLS FARGO BANK filed this credit card collections action against Defendant MICHAEL O CARAWAY. Plaintiff issued Defendant a credit card ("Account"). (Complaint at p. 4.) Defendant used the card to purchase goods, services and/or for cash advances. (Complaint at p. 4.) Defendant, in exchange for use of the card, agreed to repay the principal along with interest and other charges. (Complaint at p. 4.) Plaintiff alleges that Defendant failed to make payments owed on the Account. (Complaint at p. 4.) Plaintiff's Complaint alleges two causes of action: Breach of Written Contract and Breach of Implied Contract.

The Court has read and reviewed Plaintiff's Motion for Summary Judgment, Separate Statement of Undisputed Facts, Declaration of Plaintiff's Most Qualified Witness and attached exhibits, and Responses to Requests for Admissions. The Court finds that Plaintiff has met its initial burden of establishing all elements in support of the breach of contract claims. There is no triable issue of material fact.

The burden having shifted to Defendant, the Court finds Defendant has failed to set forth specific facts showing that a triable issue of material fact exists as to the causes of action or a defense thereto as required by CCP 437c(p)(1).

The court finds that Plaintiff is entitled to judgment as a matter of law and GRANTS the Motion for Summary Judgment. Judgment to enter in favor of Plaintiff for the principal sum of \$22,928.04, plus court costs of \$960.00, for a total judgment of \$23,888.04.